

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Laura Kastner	Team: Squad #06	CCRB Case #: 201407529	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 07/25/2014 10:00 AM	Location of Incident: East 122nd Street and Lexington Avenue	18 Mo. SOL 1/25/2016	Precinct: 25		
Date/Time CV Reported Fri, 07/25/2014 10:40 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 07/25/2014 10:40 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Daryl Melhado	01268	940464	025 PCT
2. POM Alex Perez	02964	947336	025 PCT
3. POM Edwin Villanueva	01513	952324	025 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Daryl Melhado	Abuse: Sgt. Daryl Melhado stopped § 87(2)(b)	A . Substantiated
B . POM Edwin Villanueva	Abuse: PO Edwin Villanueva stopped § 87(2)(b)	B . Substantiated
C . POM Edwin Villanueva	Abuse: PO Edwin Villanueva searched § 87(2)(b) s purse.	C . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

At approximately 10:00 a.m. on July 25, 2014, § 87(2)(b) was near the corner of East 122nd Street and Lexington Avenue in Manhattan with her niece, § 87(2)(b) when PO Edwin Villanueva, Sgt. Daryl Melhado and PO Alex Perez from the 25th Precinct SNEU team approached her (**Allegations A and B**). PO Villanueva asked if § 87(2)(b) had contraband and when she said no, PO Villanueva searched her purse (**Allegation C**). No contraband was recovered and the officers left without issuing a summons or making an arrest. § 87(4-b) § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g). Upon Inv. Omolade's departure from the agency, it was reassigned to Inv. Laura Kastner on December 11, 2014.

Mediation, Civil and Criminal Histories

§ 87(2)(b) rejected mediation. No Notice of Claim has been filed with the City of New York in regard to this incident. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (encl. C1).
- Sgt. Melhado has been a member of the service for eight years and has one prior substantiated case under case number 200917132 that resulted in instructions for a pepper spray allegation (encl. B1). PO Villanueva, a two-year-member-of-the-service, and PO Perez, a six-year-member-of-the-service, both have no prior substantiated cases (encl. B2 and B3).

Civilian Statements

Complainant/Victim: § 87(2)(b) (encl. E3-E11)

§ 87(2)(b) was interviewed at the CCRB on August 26, 2014.

- § 87(2)(b) and her § 87(2)(b)-old niece, § 87(2)(b) were walking down East 122nd Street and Lexington Avenue in Manhattan.
- Neither § 87(2)(b) nor § 87(2)(b) stopped to talk to anyone as they walked.
- After a couple of minutes, a black four door sedan with tinted windows pulled up alongside § 87(2)(b). Three plainclothed officers exited the car and surrounded her.
- § 87(2)(b) yelled out to § 87(2)(b) who was walking ahead of her, to come back and the officers told § 87(2)(b) to stay back.
- PO Villanueva, identified via investigation, asked what was in § 87(2)(b)'s purse and said if she had done nothing wrong, the officers should be able to look inside her purse.
- § 87(2)(b) became upset and handed PO Villanueva her purse.
- PO Villanueva searched through § 87(2)(b)'s purse and removed her wallet, a religious item (encl. E7) and feminine products.
- PO Villanueva placed § 87(2)(b)'s purse on top of the patrol car, opened § 87(2)(b)'s wallet and searched through the wallet.
- After searching through her purse for approximately ten minutes, PO Villanueva returned it to § 87(2)(b) and the officers walked away.
- They each provided their shield number upon § 87(2)(b)'s request.
- The officers subsequently stopped two men down the block, but § 87(2)(b) did not see any more of that interaction.
- § 87(2)(b) was not issued a summons or arrested.

Witness: § 87(2)(b) (encl. E12)

On December 24, 2014, § 87(2)(b) provided a phone statement, which was consistent with § 87(2)(b)'s statement with the following differences noted below:

- § 87(2)(b) was walking ahead of § 87(2)(b) when she heard § 87(2)(b) call her name.
- § 87(2)(b) turned around and saw that § 87(2)(b) was standing with three officers.
- § 87(2)(b) approached and was told to stay back, so she took one step back and observed the remainder of the incident from that position without an obstructed view.
- PO Villanueva already had § 87(2)(b)'s purse and was looking through it. He removed tissues, a religious object, and § 87(2)(b)'s wallet, which he looked through.
- § 87(2)(b) was crying and said the officers had no right to look through her purse.
- After searching the purse for less than one minute, PO Villanueva returned it to § 87(2)(b).
- The entire incident lasted approximately five minutes.

NYPD Statements

Subject Officer: PO EDWIN VILLANUEVA (encl. F7-F11)

PO Villanueva was interviewed at the CCRB on December 9, 2014 and provided the following factors that resulted in the stop of § 87(2)(b):

- PO Villanueva observed § 87(2)(b) for approximately two minutes, standing with a man on the corner of East 122nd Street and Lexington Avenue, a drug prone location in which a lot of complaints derive.
- PO Villanueva was in a police vehicle approximately 10 feet away from § 87(2)(b) who was on the sidewalk at the time of PO Villanueva's observations.
- § 87(2)(b) and the man were huddled together and the man appeared to hand her a multicolored object, the shape of which PO Villanueva could not discern.
- PO Villanueva suspected the object to be drugs and noted that subjects will usually pack narcotics into a pill bottle, though he never indicated observing a pill bottle.
- § 87(2)(b) placed the object in her purse and kept it close to her hand.
- PO Villanueva did not observe § 87(2)(b) hand the man anything in exchange for the object.
- § 87(2)(b) kept reaching into her purse and PO Villanueva believed that she could have been inspecting the product, which he said is typical in drug exchanges.
- PO Villanueva did not know whether the object was contraband or a weapon. When questioned regarding what type of weapon he believed the object § 87(2)(b) took from the man and put in her purse to be, PO Villanueva said, "It could have been a million things. I couldn't tell you. It could have been a knife. It could have been anything."
- § 87(2)(b) and the man spoke for a little while before separating.
- The officers approached § 87(2)(b) due to her interaction with the man and the fact that the area was a drug prone location.
- PO Villanueva asked § 87(2)(b) who the man she was speaking with was and § 87(2)(b) told him not to worry about it.
- PO Villanueva asked if § 87(2)(b) had contraband on her, which § 87(2)(b) denied.
- Although PO Villanueva was satisfied with § 87(2)(b)'s verbal denial, § 87(2)(b) insisted that the officers check her bag and offered her purse for inspection.
- PO Villanueva did not ask § 87(2)(b) to see what was in her purse prior to this.
- Nothing was recovered from inside the purse.
- PO Villanueva prepared a Stop, Question and Frisk Report at the stationhouse.

Subject Officer: SGT. DARYL MELHADO (encl. F12-F17)

Sgt. Melhado was interviewed at the CCRB on December 9, 2014 and provided the following factors that resulted in the stop of § 87(2)(b)

- PO Villanueva wanted to stop § 87(2)(b). At the time of his interview, Sgt. Melhado did not know the reason for the stop.
- Sgt. Melhado did not know what § 87(2)(b) was doing or if she was with anyone. He did not see any other female civilians in the area.
- All three officers approached § 87(2)(b).
- Sgt. Melhado could not recall any statements made by PO Villanueva.
- § 87(2)(b) handed her purse to PO Villanueva. Sgt. Melhado could not recall if she offered her purse to PO Villanueva or if PO Villanueva asked to see it.
- PO Villanueva took the purse and looked through it, Sgt. Melhado believed with negative results.
- The purse was returned to § 87(2)(b).
- Sgt. Melhado believed that a Stop, Question Frisk report was prepared at the stationhouse.
- Sgt. Melhado did not prepare any memo book entries regarding this incident.

Subject Officer: PO ALEX PEREZ (encl. F1-F6)

PO Perez was interviewed at the CCRB on November 18, 2014, but he did not recall this incident and had no memo book entries in regard.

Findings and Recommendations

Explanation of Subject Officer Identification

Since Sgt. Melhado was the supervising officer on the scene, Allegation A has been pled to him. Additionally, because officer statements revealed that PO Villanueva was the officer who stopped and searched § 87(2)(b) Allegations B and C have been pled to him.

Allegation A: Abuse of Authority: Sgt. Daryl Melhado stopped § 87(2)(b)

Allegation B: Abuse of Authority: PO Edwin Villanueva stopped § 87(2)(b)

§ 87(2)(g) § 87(2)(b) was stopped by PO Villanueva, who was being supervised by Sgt. Melhado at the time of the stop.

An officer may stop an individual when there is reasonable suspicion to believe that individual has committed, is committing, or is about to commit a crime. People v. DeBour, 40 N.Y.2d 210 (1976) (encl. A1-A11). Innocuous behavior, albeit in a high crime area, does not generate a founded or reasonable suspicion that criminality is afoot. People v. Hampton, 200 A.D.2d 466 (1994) (encl. A12-A14).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **substantiated**.

Allegation C: Abuse of Authority: PO Edwin Villanueva searched § 87(2)(b) s purse.

§ 87(2)(g) PO Villanueva searched § 87(2)(b) s purse and that no contraband or narcotics were found.

An officer may search an individual when there is probable cause to believe that individual has committed a crime. People v. Hill, 569 N.Y.S.2d 227 (1991 – 4th Dept.) (encl. A15-A17). When, during the course of a police encounter, an officer asks accusatory questions that focus on the criminality of a person, the encounter has become a common-law inquiry that must be supported by founded suspicion that criminality is afoot. Additionally, a request to search a bag is intrusive and intimidating and would cause a reasonable person to believe that they were suspected of criminal conduct. People v. Hollman, 79 N.Y.2d 181 (1992) (encl. A18-A25). Consent to search is voluntary when it is an unequivocal product of an essentially free and unconstrained choice. Voluntariness is incompatible with official coercion, actual or implicit, overt or subtle. The voluntariness of the consent is to be evaluated by the totality of the circumstances. People v. Green, 930 N.Y.S.2d 176 (2011 – Sup. Ct. Bx Cty) (encl. A26-A29).

§ 87(2)(g)

§ 87(2)(b) alleged that PO Villanueva asked to look inside the purse § 87(2)(g)

§ 87(2)(g) PO Villanueva said that after he questioned § 87(2)(b) about who the man she was allegedly speaking with was and about whether she had contraband on her, § 87(2)(b) insisted that her purse be searched although PO Villanueva denied asking for permission to search the purse, and that PO Villanueva complied with § 87(2)(b) s request. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

[Redacted text block containing multiple lines of blacked-out information]

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date